

25STCV17113 25STCV17113

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-12

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Case Number: 25STCV17113 Hearing Date: August 12, 2026 Dept: I

25STCV17113 ANNUNZIATA CRUPI vs EDWARD B MORETON,
JR., et al.

August 12, 2026,
at 8:30 a.m.

Van Nuys

Courthouse East, Dept. I

Tentative Ruling –
Motion to Quash

I.

Background

On June

12, 2025, Plaintiff Annunziata Crupi ("Plaintiff") filed a complaint against Defendants Edward B. Moreton, Jr. ("Moreton"), Randolph M. Hammock ("Hammock"), University of Southern California ("USC"), Valter Longo ("Longo"), Sebastian Brandhorst ("Brandhorst"), Wendy Snaer ("Snaer"), Gregory Wong ("Wong"), Heather Cox ("Cox"), L-Nutra, Marta Alcumbrac ("Alcumbrac"), Howard Smith ("Smith"), Peter Walrod ("Walrod"), Candice Zee ("Zee"), Mark Schaeffer ("Schaeffer"), and Does 1 to 100 alleging twenty-three (23) causes of action: (1) civil conspiracy; (2) civil conspiracy to persecute, isolate, and defame; (3) constructive eviction; (4) violation of civil rights via affirmative acts; (5) infliction of public humiliation; (6) retaliation; (7) discrimination; (8) defamation; (9) tortious interference with contract; (10) tortious interference with prospective economic advantage; (11) invasion of privacy; (12) civil

harassment; (13) abuse of process; (14) fraud in arbitration; (15) economic coercion and duress; (16) declaratory and injunctive relief; (17) loss of consortium and familial association; (18) violation of constitutional right to travel; (19) violation of right to intimate association and family life; (20) violation of right to reproductive liberty and family formation; (21) unfair business practices; (22) intentional infliction of emotional distress; and (23) negligent infliction of emotional distress.

On July 14, 2026, Smith filed the instant motion to quash service of summons and complaint.

To date, the motion remains unopposed.

II. Discussion

Cal. Code of Civ. Proc. § 418.10(a)(1) permits quashing of service of summons and complaint when there was no valid service of summons. (See CCP § 418.10(a)(1).) CCP § 415.10 governs personal service of summons and requires personal, physical delivery of a copy of the summons and complaint to the person to be served. (See CCP § 415.10.)

Smith brings the instant motion on the grounds that, on July 9, 2026, Plaintiff attempted service on Smith by serving Smith's counsel with the pleadings via electronic email. (Stone Decl. ¶ 7; Exh. 8.) Accordingly, Plaintiff did not perform service via "personal delivery" as required by CCP § 415.10.

III. Conclusion

Based on the foregoing, specially appearing defendant Howard Smith's motion to quash service of summons is GRANTED.

Moving party to give notice.